



Subscriber Agreement

OPS-AGR-003

1.1

11th November 2023

Document Control

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Name	Organisation	Date issued	Version	Action
O Sothcott	Aretiico			C,R
T Shields	Aretiico			C,R,A
Laura Witherspoon	Fieldfisher			C,R,P
Alastair Taylor	Aretiico			R

P=Producer, C=Contributor, R=Reviewer, A=Authoriser, I=for information only

Document Revision History

Version	Date	Author	Summary of changes
0.1	21 st March 23	Fieldfisher	Initial draft
0.2	28 th March 23	O Sothcott	Updated and moved to new template
0.3	6 th October 23	O Sothcott	Add email address and resolved some of the comments
0.4	9 th October 23	O Sothcott	Updated section 2.5 based on feedback from TSCP (M Yatkso)
0.5	11 th October	Laura Witherspoon	Reviewed and added updates around liability 11.3
0.6	11 th October	O Sothcott	Added clarification around EV certificates
1.0	20 th October 23	O Sothcott	Ready for PMA meeting
1.1	10 th Nov 23	T Shields	Added wording around ACME protocol

Subscriber Agreement

Applicable from: **[insert]**

Aretiico Limited, a company registered in England and Wales (company registration no. 11477504) with its registered office at Riverbank House, Swan Lane, London, EC4R 3TT, and/or its Affiliates ("**Aretiico**", "**we**", "**us**", "**our**") is a digital trust service provider. We act as a certificate authority to issue digital certificates for website authentication, secure email, and digital signatures that you wish to rely on.

This Subscriber Agreement will be binding on Aretiico and the person or entity (the "**Subscriber**", "**you**", "**your**") to whom we issue digital certificates or uses other products and services that we provide. This Subscriber Agreement comprises: (i) any applicable terms of use applicable to each Digital Certificate, as amended from time to time; (ii) the Certification Practices Statement (available at: [CPS link](#)); (iii) the Certificate Policy (available at: [CP link](#)); and (iv) any other terms incorporated by reference herein. Your attention is also drawn to the Privacy Notice (available at: **[insert link]**) which explains how we process personal data in connection with digital certificates that we issue.

By completing a Digital Certificate Application, signing this Subscriber Agreement or any document incorporating this Subscriber Agreement by reference, or by undertaking any other step to apply for, accept or use any digital certificate issued by us (including by clicking 'yes' or similar to accept this Subscriber Agreement online), you agree that you will be contractually bound to comply with this Subscriber Agreement and the documents referred to within it. If you do not agree to the terms of this Subscriber Agreement, you must not continue to proceed with or cancel your Digital Certificate Application.

For more information on defined terms and how this Subscriber Agreement will be interpreted, please refer to clause 17 (*Definitions and Interpretation*).

1. Eligibility

- 1.1 In order to make a Digital Certificate Application and to use our services, you must satisfy the representations and warranties set out in clause 5 (Your warranties and compliance) of this Subscriber Agreement.
- 1.2 If you are an individual acting on behalf of an organisation, you must have authority to act on behalf of your organisation and bind your organisation to this Subscriber Agreement and to make Digital Certificate Applications on behalf of your organisation. You must act on the instructions of your organisation when dealing with us and must notify us immediately if you cease to be employed or otherwise engaged by your organisation in a capacity that permits you to exercise your rights and perform your obligations under this Subscriber Agreement.

2. Certification Procedures

- 2.1 You may apply for a Digital Certificate by submitting a Digital Certificate Application to us in accordance with the Certification Practices Statement and Certification Policy. We may require further information from you in order to complete our authentication procedures.
- 2.2 Following receipt of payment of the charges and successful completion of our authentication procedures required for issuance of the Digital Certificate, we will notify you whether your Digital Certificate Application is approved or rejected. If your Digital Certificate Application is approved, we will issue a Digital Certificate for your use in accordance with this Subscriber Agreement.
- 2.3 On receipt of a Digital Certificate, you must review the information contained within it and notify us immediately if you identify any errors. If you notify us of any errors in your Digital Certificate before accepting it, we may revoke the Digital Certificate and, subject to completing any further authentication procedures successfully, issue a corrected Digital Certificate to you. You must not use any Digital Certificate in which you have identified any errors.

If you are using an automated system for certificate retrieval and installation, for example the ACME process, you are deeming the Digital Certificate as accepted as soon as it's been issued.

- 2.4 You will be deemed to have accepted the Digital Certificate immediately on putting the Digital Certificate into use, including by installing the Digital Certificate to any device or loading the Digital Certificate to any domain.
- 2.5 If the Digital Certificate is stored on a hardware security module (HSM), you will authenticate with PIN or password for a HSM rated at FIPS 140-2 Level 2 or smart cards for a HSM rated FIPS 140-2 Level 3.

3. Revocation Procedure

- 3.1 You shall promptly submit a Revocation Request to us, and immediately cease to use the Digital Certificate for any purpose, if:
 - a) you become aware of any actual or suspected loss, misuse or compromise of the Private Key; or
 - b) the Digital Certificate Information changes, or becomes incorrect, inaccurate or misleading.
- 3.2 We may revoke a Digital Certificate on notice to you if:
 - a) the Private Key has been lost, misused or compromised (or is exposed to compromise);

- b) the Digital Certificate Information has changed, or has become incorrect, inaccurate or misleading;
 - c) you breach a material obligation under the Certification Practices Statement, Certificate Policy, or this Subscriber Agreement including clauses 5 (Your warranties and compliance), 6 (Conditions of Use), 8 (Intellectual Property Rights), 9 (Confidentiality), and/or 10 (Privacy);
 - d) you fail to pay any amount due under this Subscriber Agreement on the due date for payment;
 - e) required by a government or regulatory authority;
 - f) you submit a Revocation Request; or
 - g) any other revocation event described in the Certification Practices Statement or Certificate Policy occurs.
- 3.3 On expiration or notice of revocation of a Digital Certificate, you must immediately cease to use the Digital Certificate and the Private Key for any purpose and such Digital Certificate will no longer be a Valid Digital Certificate.

4. Charges and payment

- 4.1 You shall pay all applicable charges and expenses in accordance with your order, this Subscriber Agreement and any other applicable payment terms or conditions that we may agree with you.
- 4.2 You shall pay us at the time of placing an order or, if we agree otherwise, within thirty (30) days after the date of our invoice, unless different payment terms are specified in your order.
- 4.3 All sums payable are exclusive of tax, including value added tax, which shall be payable by you and added to our invoices where applicable.

5. Your warranties and compliance

- 5.1 You represent and warrant that:
- a) all the information you provide or have provided in a Digital Certificate Application (the "Digital Certificate Information") is true, accurate and is not misleading, and does not infringe the rights (including the Intellectual Property Rights) of any third party;
 - b) you (and any Authorised User) are and will remain the only person(s) possessing the Private Key and shall not permit any other person access to or use of the Private Key;

- c) you (and persons under your control who you specifically authorise) will remain the only person possessing any Security Mechanism protecting the Private Key;
 - d) you are a Subscriber and are not acting as a Certification Authority;
 - e) you are not a Sanctioned Person; and
 - f) you will and are able to comply with this Subscriber Agreement.
- 5.2 The warranties set out in clause 3.1 shall be deemed to be given at the date of acceptance of this Subscriber Agreement, at the date of each Digital Certificate Application and on a continuing basis for the duration of this Subscriber Agreement.
- 5.3 We are not responsible or liable for the accuracy or completeness of any Digital Certificate Information provided by you in connection with our services or any Digital Certificates that we issue or revoke, and you are responsible for determining if and the extent to which such information should be relied on and whether or not any further enquiries should be made to confirm the information contained in the Digital Certificate Information before you provided it to us and at the time when you are issued a Digital Certificate. You hereby indemnify us and agree to hold us harmless from and against any liabilities, losses, costs and expenses incurred by us in connection with any claims or proceedings brought by third parties against us, including by any Relying Party, as a result of any Digital Certificate Information provided by you being or being alleged to be in breach of any warranty contained in this Subscriber Agreement, or as a result of any Digital Certificate Information infringing or being alleged to infringe the rights of any third party (including any Intellectual Property Rights).

6. Conditions of Use

- 6.1 You must not (and must ensure that your Authorised Users do not):
- a) apply for a Digital Certificate, use a Digital Certificate or use a Private Key for any fraudulent or unlawful purpose;
 - b) impersonate any person, to create a false identity, or to falsely state or otherwise misrepresent your identity or your affiliation with any person;
 - c) upload or transmit anything that infringes any other person's rights (including any Intellectual Property Rights);
 - d) provide any Digital Certificate Information to us that you do not have consent or another lawful right to disclose (such as confidential information or personal data of others);
 - e) amend or alter a Digital Certificate or any Digital Certificate Information without our express written consent;
 - f) do anything that is likely to bring us into disrepute.

6.2 You must not breach our security or do anything that could harm the security of our services or any digital certificate issued by us. In particular, you must not:

- a) interfere with or disrupt the operation of our services or the issuance or revocation of digital certificates;
- b) transmit or otherwise introduce any virus, worm, Trojan horse, time bomb, spyware, or other computer code, file, or programme that is harmful or invasive or may or is intended to damage or hijack the operation of, or to monitor the use of, any hardware, software, or equipment operated or used by us to provide our services or to issue or revoke digital certificates;
- c) access another person's account without their permission;
- d) restrict or inhibit the ability of any other person to access or use our services; or
- e) test or reverse-engineer any of our services or any digital certificate issued by us for any purpose including to find limitations, vulnerabilities or other weaknesses in any hardware, software or equipment operated or used by us to provide our services or to issue or revoke digital certificates.

6.3 You must not infringe our rights. In particular, you must not:

- a) copy, modify, adapt, translate or create derivative works of any Digital Certificate or any information, content, material or data made available on using our services, except as permitted by this Subscriber Agreement;
- b) monitor our services or their availability, performance or functionality for any competitive purpose;
- c) remove, obscure or modify any copyright, trademark, or other proprietary rights notice on any Digital Certificate or materials that we provide to you;
- d) scrape our websites or services or use any software, devices, robots, scripts or other means or processes to scrape our websites or services or extract information from our websites or services;
- e) imply or state that you are affiliated or endorsed by us without our express consent; or
- f) engage in "framing", "mirroring", or "deep linking" of our websites or services.

6.4 We may temporarily or permanently limit or restrict your access and use of our websites or services if we consider that:

- a) you have breached, or we reasonably suspect you have breached or are likely to breach, any provision of this Subscriber Agreement; or

- b) it is reasonably necessary from time to time in connection with any actual or perceived security threat to our websites or services or any digital certificates that we may issue from time to time.

7. Our warranties

7.1 We warrant that:

- a) we exercise reasonable care and skill when issuing and revoking Digital Certificates in accordance with this Subscriber Agreement and, in particular, our Certification Practice Statement;
- b) each Digital Certificate that we issue and which has not been cancelled or revoked has no errors which arise from a failure to exercise reasonable care and skill in the performance of our duties under this Subscriber Agreement; and
- c) each Digital Certificate we issue complies in all material respects with our Certification Practice Statement at the date of issue.

7.2 Your sole and exclusive remedy for any breach of our warranties given in this Subscriber Agreement is for us to re-perform our services and issue a corrected Digital Certificate without the errors that have been identified to us. We shall not have any obligation to correct errors in a Digital Certificate that has been accepted by you in accordance with clause 1.1 (Certification procedures).

7.3 Save as expressly provided in this Subscriber Agreement, our services, digital certificates and websites are made available on an 'as is' and 'as available' basis. It is your responsibility to ensure that our services and the digital certificates that we issue are suitable for your intended purposes. We hereby exclude all warranties, terms, conditions, undertakings, representations and obligations implied by statute, common law, trade usage, course of dealing or otherwise to the fullest extent permitted by law. In particular, we give no warranty that our websites or services will be uninterrupted or error-free and we make no other representation or warranty, whether express or implied, that our services or certificates will meet your requirements or as to the results that may be obtained from the use of our services or any digital certificates issued by us.

7.4 We shall have no liability (whether under contract, tort including negligence, statute or otherwise) for any defect, fault or error that results directly or indirectly from you (or any Authorised User) having incorrectly installed, altered or modified a Digital Certificate or any Digital Certificate Information or from having used a Digital Certificate in connection with any software, hardware or service which is incompatible with our digital certificates.

7.5 We may update or change the precise specification or functionality of our websites and services at our discretion.

8. Intellectual property rights

- 8.1 All Intellectual Property Rights in our websites, services and digital certificates belong to us and to our licensors and you shall not have any right, title or interest in such Intellectual Property Rights except as expressly stated herein. In the event that any such Intellectual Property Rights are modified or any derivative works are created using such Intellectual Property Rights, all such modifications and derivative works shall vest in us and you hereby assign to us any right, title or interest you may have in such modifications and derivative works by way of present assignment of future rights.
- 8.2 You hereby grant to us a perpetual, irrevocable, worldwide, transferable and irrevocable licence (including the right to sub-license others) to use the Digital Certificate Information that you provide to us as contemplated in this Subscriber Agreement in order to assess your Digital Certificate Application, issue Digital Certificates and revoke Digital Certificates, as the case may be, and otherwise to perform our obligations and administer our websites and services. Our use of the Digital Certificate Information shall be subject to our obligations under clause 10 (*Privacy*) and clause 9 (*Confidentiality*).
- 8.3 We hereby grant you the sole right to use each Digital Certificate and each Private Key issued to you as permitted on the terms and conditions set out in this Subscriber Agreement for so long as the Digital Certificate Information relating to each Digital Certificate and Private Key remains valid and the Digital Certificate has not been revoked.

9. Confidentiality

- 9.1 For the purposes of this Subscriber Agreement, "Confidential Information" means all materials, data and other documents which are disclosed by one party to the other in connection with this Subscriber Agreement:
- a) all data, information, documents and materials provided by you are your Confidential Information;
 - b) all data that is in aggregate or de-identified form (irrespective of its source), or is held by or disclosed to us independently of the services that we provide are our Confidential Information;
 - c) personal data shall be the Confidential Information of the applicable controller and may be the Confidential Information of both parties if they are each a controller with respect to the personal data; and
 - d) Digital Certificate Information shall be your Confidential Information, except for certain parts that we may disclose in accordance with clause 9.4.
- 9.2 Except to the extent set out herein or where disclosure is expressly permitted in this Subscriber Agreement or by the functionality of the services that we provide, each party shall treat the other party's Confidential Information as confidential and safeguard it

accordingly, and shall not disclose the other party's Confidential Information to any other person without the other party's prior written consent.

9.3 Neither party will be restricted from disclosing information to the extent that:

- a) such disclosure is a requirement of law placed on the party making the disclosure;
- b) such information was in the possession of the party making the disclosure without obligation of confidentiality prior to its disclosure by the information owner, or is obtained from a third party without obligation of confidentiality;
- c) such information was already in the public domain at the time of disclosure otherwise than by a breach of contract;
- d) such information is independently developed without access to the other party's Confidential Information;
- e) disclosure is made to a party's legal counsel, independent auditors, or other professional advisers who are subject to professional duties of confidence;
- f) such disclosure is required in connection with the assessment of Digital Certificate Applications or the issuance or revocation of any Digital Certificate in accordance with this Subscriber Agreement (and, particular, the Certification Practices Statement).

9.4 Notwithstanding anything to the contrary in this Subscriber Agreement, we shall have the rights (without any further consent) to:

- a) disclose personal data about you or your Authorised Users in accordance with our Privacy Notice;
- b) disclose Digital Certificate Information to third parties as required for us to assess a Digital Certificate Application and conduct appropriate verifications in accordance with our Certification Practice Statement;
- c) disclose Digital Certificate Information embedded in a Digital Certificate to the public; and
- d) disclose and log Digital Certificates and information embedded therein to publicly accessible Digital Certificate transparency databases for the purposes of detecting and preventing phishing and other fraud or illegal activities.

9.5 You may not make any reference to us in any marketing materials or announcements unless you first obtain our written consent. If you are an organisation, we may mention your name in our marketing materials to indicate that you are a user of our services, provided that no further Confidential Information is contained in such marketing materials unless we obtain your written consent.

10. Privacy

- 10.1 Any personal data collected about you or your Authorised Users under this Subscriber Agreement will be processed by us in accordance with applicable data protection laws and our Privacy Notice.
- 10.2 Where you are an entity, you must ensure that your Authorised Users are aware of our Privacy Notice and where appropriate, bring it to their attention prior to sharing any personal data with us.
- 10.3 We may ask you or your Authorised Users for consent or explicit consent in certain circumstances where we require, including to process certain categories of personal data.

11. Our liability

- 11.1 Nothing in this Subscriber Agreement is intended to exclude or limit our liability for death or personal injury caused by our negligence, for fraudulent misrepresentation or for any other liability that cannot be excluded or limited by law.
- 11.2 Subject to clause 11.1, we will not be liable to you or your Authorised Users (past, present or prospective):
- a) for any special, indirect or consequential loss; or
 - b) for any loss of profits, data, revenues, business, employment or goodwill (whether such losses are direct or indirect).
- 11.3 Subject to clause 11.1 and 11.2, our total liability under this Subscriber Agreement (whether in tort, contract or otherwise) shall in no event exceed one thousand pounds (£1,000) per Digital Certificate issued to you; provided however that the our total liability shall be two thousand pounds (£2,000) per Digital Certificate issued in respect of either an EV Certificate or an EV Code Signing Certificate.
- 11.4 We shall not be in breach of this Subscriber Agreement or otherwise liable to you or any of your Authorised Users for any failure to perform or any delay in performing our obligations under this Subscriber Agreement or in respect of the services or any Digital Certificates that we provide if and to the extent that such failure or delay is due to any failure or delay of yours to comply with this Subscriber Agreement or to provide us with reasonable assistance and cooperation in connection with this Subscriber Agreement.
- 11.5 Neither party shall be in breach of this Subscriber Agreement or otherwise liable to the other party for any failure to perform or delay in performing its obligations under this Subscriber Agreement to the extent that such failure or delay is due to a Force Majeure Event. If a Force Majeure Event occurs, the party affected shall take reasonable steps to mitigate the impact of the Force Majeure Event. This clause 11.4 shall not relieve you from your obligation to pay any sums due in connection with this Subscriber Agreement and your

obligation to pay shall remain in full force and effect while a Force Majeure Event persists. If a Force Majeure Event persists in preventing or delay a party from performing its obligations for a continuous period in excess of thirty (30) days, the other party may immediately terminate this Subscriber Agreement on written notice.

- 11.6 You must notify us promptly of any claim or demand under this Subscriber Agreement and we shall not be liable (whether under contract, tort including negligence, statute or otherwise) in respect of any claim or demand that is notified or commenced against us later than twelve (12) months after the date on which you became aware of the facts or matters giving rise to your claim or demand.
- 11.7 You agree that monetary damages may not be an appropriate remedy for your breach of this Subscriber Agreement and we reserve the right to equitable remedies including injunctive relief.
- 11.8 You agree that our liability to each Relying Party is set out in our Relying Party Agreement, which the Relying Party must agree to in order to benefit from the warranties in respect of a Digital Certificate set out in the Relying Party Agreement.

12. Term and termination

- 12.1 This Subscriber Agreement shall apply to each Digital Certificate Application that you make with us and to each Digital Certificate that we issue for the duration of the Digital Certificate.
- 12.2 We may also set a term during which this Subscriber Agreement will apply in an order form that we enter into with you. If a term applies under an order, then this Subscriber Agreement shall apply for that term and shall automatically renew for a period of twelve (12) months at the end of the initial term or any renewal period, unless either you or we give at least thirty (30) days' notice to terminate this Subscriber Agreement prior to the expiry of the initial term or renewal period.
- 12.3 Either party may terminate this Subscriber Agreement immediately or on such other notice as it considers appropriate if:
- a) the other party fails to pay any amount due under this Subscriber Agreement on the due date for payment and remains in default not less than seven (7) days after being notified in writing to make such payment; or
 - b) the other party is in material breach of this Subscriber Agreement and the breach either cannot be remedied or is not remedied by the other party within thirty (30) days of receiving notice of the breach from the party not in breach.
- 12.4 Termination or expiry of this Subscriber Agreement shall not affect any accrued rights or liabilities of either party nor shall it affect any other provision of this Subscriber Agreement

which is expressly or by implication intended to come into or continue in force on or after termination or expiry of this Subscriber Agreement.

- 12.5 Unless a Digital Certificate is revoked or cancelled, the terms of this Subscriber Agreement will continue to apply to the Digital Certificate for its duration, irrespective of whether or not this Subscriber Agreement has been terminated.

13. Compliance

We confirm that we comply in all material respects with all applicable laws and regulations governing our services and the digital certificates that we issue. Where required, you agree to provide reasonable assistance to us in complying with all such laws and regulations.

14. Export

Both parties shall comply with all applicable laws, regulations, and export requirements in connection with their obligations under this Subscriber Agreement. You will not modify, export, or re-export, either directly or indirectly, any service component provided by us without first obtaining any and all necessary licenses from the relevant government or agencies of any country that requires an export license or other governmental approval at the time of modification, export, or re-export. You also agree that you will not use these service components for any purposes prohibited by applicable laws or regulations, including, without limitation, the development, design, manufacture or production of nuclear, missiles, or chemical or biological weapons. We shall have the right to suspend performance of any of our obligations under this Subscriber Agreement, without any prior notice being required and without any liability to you, if we consider that you have failed to comply with this provision.

15. Modifications

We may amend or update this Subscriber Agreement or any terms and conditions contained with it at any time by posting an updated Subscriber Agreement on our website or on notification to you (which may be by email) (a "**Change**"). Any Change will apply thirty (30) days after the date on which we make the post on our website or notify you. If the Change materially or adversely affects you, you may terminate this Subscriber Agreement at any time by providing written notice to us. By continuing to use our services or any Digital Certificate after the date on which a Change takes effect, you will be deemed to have agreed to the Change. Your right to terminate is your sole and exclusive remedy in respect of any Change.

16. Other provisions

- 16.1 **Illegality/Severance:** If any provision of this Subscriber Agreement is declared by any competent court or body to be illegal, invalid or unenforceable under the law of any jurisdiction, or if any enactment is passed that renders any provision illegal, invalid or unenforceable under the law of any jurisdiction, this shall not affect or impair the legality, validity or enforceability of the remaining provisions.

- 16.2 Third party rights: Any member of our group of companies may enforce this Subscriber Agreement directly against you as if they were a party to this Subscriber Agreement. Otherwise, only a person who is a party to this Subscriber Agreement may enforce its terms. We may vary or rescind this Subscriber Agreement or any provision of it without the consent of any other member of our group of companies.
- 16.3 Waiver: If we fail to insist that you meet your obligations under this Subscriber Agreement or if we do not enforce our rights against you or if we delay in doing so, that will not mean that we have waived our rights against you and it does not mean that you do not have to comply with those obligations. If we do waive a default by you, we will only do so in writing and that will not mean that we will automatically waive any later default by you. Even if we delay in enforcing our rights under this Subscriber Agreement, we may still enforce our rights later.
- 16.4 Entire Agreement: This Subscriber Agreement and the documents referred to within it constitutes the entire agreement and understanding between you and us relating to your access to and use of our services.
- 16.5 No reliance: You acknowledge and agree that you do not rely on, and shall have no remedy in respect of, any promise, assurance, statement, warranty, undertaking or representation made (whether innocently or negligently) by us or any other person except as expressly set out in this Subscriber Agreement, in respect of which your sole remedy shall be for breach of contract.
- 16.6 Fraud and fraudulent misrepresentation: Nothing in clauses 16.4 or 16.5 or elsewhere in this Subscriber Agreement shall operate or be construed to exclude or limit any liability of any person for fraud, including fraudulent misrepresentation.
- 16.7 Assignment and subcontracting: We may assign or transfer our rights and/or subcontract our obligations under this Subscriber Agreement to any other person at any time. You may not assign or transfer any of your rights or obligations under this Subscriber Agreement without our prior written consent.
- 16.8 Governing Law and Jurisdiction: This Subscriber Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes or claims) shall be governed by English law. The parties submit to the non-exclusive jurisdiction of the English courts for all purposes relating to and in connection with this Subscriber Agreement and any such dispute or claim.
- 16.9 Independent contractors: Nothing in this Subscriber Agreement shall be deemed at law to constitute a partnership, trust, agency or any other relationship between you and us other than independent contractors and you shall not have any authority to bind us to any of your actions or omissions.
- 16.10 Notices: Notices may be issued in connection with this Subscriber Agreement by either personal delivery, post or email to either party's address or contact details set out in a

Certification Application or order relating to this Subscriber Agreement. Notices shall take effect: (a) on the Business Day on which it is delivered or, if delivered outside of Working Hours, on the next Business Day (if delivered personally or by email); (b) two (2) Business Days after posting by first class post or local equivalent (if the parties are located in the same country); (c) five (5) Business Days after posting by airmail (if the parties are located in different countries). We will not be deemed to receive any notice of any claim or demand or in respect of any termination unless is also sent to legal@aretiico.com. No notices given by email will be effective if any automatic message indicating non-delivery are issued or received, such as system undeliverable or out of office messages.

17. Definitions and interpretation

17.1 In this Subscriber Agreement, the following terms shall have the meanings given to them below:

"Authorised User" means any person under your control who you specifically authorise to access or use the Private Key associated with any Digital Certificate that we issue to you;

"Business Day" means a day on which banks are open for business in London other than when they are only open for electronic banking;

"Certificate Policy" means our policy in relation to the generation, production, distribution, accounting, compromise recovery and administration of digital certificates, available at: [*insert link*], as amended from time to time;

"Certification Practice Statement" means our statement of the practices in respect of issuing, suspending, revoking and renewing digital certificates and providing access to them, available at: [*insert link*], as amended from time to time;

"Certification Authority" means an entity that issues digital certificates certifying the ownership of a public key by the named subject of the digital certificates and, in our case, refers to us in respect of Digital Certificates issued under this Subscriber Agreement;

"Digital Certificate" means a digital certificate for web authentication (or another purpose expressly permitted by us) issued by us following approval of a Digital Certificate Application;

"Digital Certificate Application" means an application made by you or an Authorised User on your behalf in the form required by us;

"Digital Certificate Information" has the meaning given to it in clause 5.1a

"EV Certificate (EV)" means a type of TLS/SSL certificate that verifies that the certificate holder has undergone the most extensive level of vetting and identity background checks to certify that their website is authentic and legitimate.

"EV Code Signing Certificate" used by software developers to digitally sign applications, drivers, executables and software programs as a way for end-users to verify that the code they receive has not been altered or compromised by a third party.

"Force Majeure Event" means the occurrence of any cause or event that is beyond the reasonable control of the affected party, including war, riot, civil commotion, terrorist attack, fire, flood, storm; act of God, strikes, lockouts or other industrial disputes;

"Intellectual Property Rights" means any patents and applications for patents, trademarks, service marks and domain names and applications for the same, unregistered trademarks and rights in trade names and business names, copyright and moral rights (including copyright in computer software), know how, database rights, rights in designs and rights in inventions, and any rights of the same or similar effect or nature as any of the foregoing;

"Privacy Notice" means our privacy notice available at [[insert link](#)], as amended from time to time;

"Private Key" means the private key corresponding to a public key contained in a Digital Certificate;

"Relying Party" means any natural or legal person that relies on a Valid Digital Certificate, excluding a supplier of internet browser software or other application software that displays or uses Digital Certificates when distributing software that merely displays information relating to a Digital Certificate;

"Relying Party Agreement" means our terms applicable to a Relying Party's reliance on a Digital Certificate issued by us to the Subscriber, available at ([RPA link](#)), as amended from time to time;

"Revocation Request" means a written request by the Subscriber to revoke a Digital Certificate;

"Sanctioned Person" means a person or entity that is: (a) the target of Sanctions; (b) located in, ordinarily resident in, or incorporated in, a country or territory that is the target of comprehensive Sanctions; (c) owned or controlled (as such term is defined by the relevant Sanctions) by any person covered by paragraph (a) or (b), as a result of which such owned or controlled person is subject to prohibitions or restrictions described in paragraph (a) or (b);

"Sanctions" means any economic or trade sanctions or restrictions administered, enacted or enforced by any of the following Sanctions Authorities: (a) United States; (b) United Kingdom; (c) European Union; (d) United Nations; or (e) the respective Government authorities of any of the foregoing countries or treaty organisations;

"Security Mechanism" means any personal identification number (PIN), challenging phrase, password or other software or hardware mechanism used to secure disclosure of, access to and use of the Private Key;

"Subscriber" has the meaning given to it at the beginning of this Subscriber Agreement;

"Valid Digital Certificate" means a Digital Certificate that (i) we have issued, (ii) the Subscriber has accepted, (iii) has not expired, and (iv) has not been revoked; and

"Working Hours" means 9am to 5pm on each Business Day.

17.2 In this Subscriber Agreement, unless the context otherwise requires:

- a) words in the singular shall include the plural and words in the plural shall include the singular;
- b) words denoting any gender include all genders;
- c) the headings are for convenience only and shall not affect the construction of this Subscriber Agreement;
- d) references to each party herein include references to its successors in title and permitted assigns;
- e) references to "includes" or "including" shall be read as being immediately followed by the words "without limitation";
- f) any capitalised terms (or terms beginning with a capital letter) that are used but are not defined in this Subscriber Agreement shall be given their generally accepted meaning in the information and communications technology industry or, where there is no such generally accepted meaning, their ordinary meaning within the context of this Subscriber Agreement;
- g) a "signature" may include a handwritten "wet ink" signature, a digital signature or any other electronic act indicating consent or acceptance including a typed-name, clicking a website button or incorporating a scanned manuscript signature into a document or email, and any reference to "sign" or "signed" shall be construed accordingly